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February 19, 2025

By: Bergstrom

An Act relating to the Oklahoma Riot Control and Prevention Act; amending 21 O.S. 2021, Section 1321.4, which relates to acts which may be proclaimed prohibited; adding certain entities that are prohibited from taking certain actions; authorizing activity in certain place during state of emergency; modifying scope for which relief may be sought; updating statutory reference; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 1321.4, is amended to read as follows:

Section 1321.4. A. The Governor during the existence of a state of emergency, by proclamation, may, in the area described by the proclamation, which proclamation shall not cover any part or portion of the state not affected by public disorder, disaster, or riot at the time the proclamation is issued, prohibit:

1. Any person being on the public streets, or in the public parks, or at any other public place during the hours declared by the Governor to be a period of curfew;

1 2. A designated number of persons, as designated by the
2 Governor, from assembling or gathering on the public streets, parks,
3 or other open areas of this state, either public or private;

4 3. The manufacture, transfer, use, possession, or
5 transportation of a molotov cocktail or any other device,
6 instrument, or object designed to explode or produce uncontained
7 combustion;

8 4. The transporting, possessing, or using of gasoline,
9 kerosene, or combustible, flammable, or explosive liquids or
10 materials in a glass or uncapped container of any kind except in
11 connection with the normal operation of motor vehicles, normal home
12 use, or legitimate commercial use;

13 5. The sale, purchase, or dispensing of alcoholic beverages;

14 6. The sale, purchase, or dispensing of other commodities or
15 goods, as the Governor reasonably believes should be prohibited to
16 help preserve and maintain life, health, property, or the public
17 peace;

18 7. The use of certain streets, highways, or public ways by the
19 public; and

20 8. Such other activities as the Governor reasonably believes
21 should be prohibited to help preserve and maintain life, health,
22 property, or the public peace.

23 B. ~~Notwithstanding this section or any other law of this state,~~
24 ~~neither the~~ The Governor ~~nor~~ or any official of a ~~municipal~~

1 municipality, county, or political subdivision of this state, or any
2 other state entity during the existence of a state of emergency,
3 shall not prohibit or suspend ~~the sale~~:

4 1. The sale, ownership, possession, transportation, carrying,
5 transfer, and storage of firearms, ammunition, and ammunition
6 accessories during a declared state of emergency, that are otherwise
7 legal under state law; or

8 2. Any activity in a place of worship during a declared state
9 of emergency that is otherwise legal under state law.

10 C. In imposing the restrictions provided for by the Oklahoma
11 Riot Control and Prevention Act, the Governor may impose them for
12 such times, upon such conditions, with such exceptions, and in such
13 areas of this state the Governor from time to time deems necessary.

14 D. Any individual aggrieved by a violation of subsection B of
15 this section may seek relief in an action at law or in equity for
16 redress against any person or against an official of a municipality,
17 county, political subdivision, or other state entity who subjects
18 such individual or causes such individual to be subjected to an
19 action prohibited by subsection B of this section. In addition to
20 any other remedy at law or in equity, an individual aggrieved by the
21 seizure or confiscation of a firearm or ammunition in violation of
22 paragraph 1 of subsection B of this section may bring an action for
23 the return of such firearm or ammunition in the district court of
24 the county in which that individual resides or in which such firearm

1 or ammunition is located. In any action or proceeding to enforce
2 the provisions of this section, the court shall award the prevailing
3 plaintiff costs and reasonable attorney fees.

4 SECTION 2. This act shall become effective November 1, 2025.

5 COMMITTEE REPORT BY: COMMITTEE ON PUBLIC SAFETY
6 February 19, 2025 - DO PASS
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